

Narendra Kumar v. Harshit Tewari, Executive Engineer

High Court of Judicature at Allahabad, Lucknow Bench · Single Judge · 14 July 2022 · Contempt Application (Civil) No. 1380 of 2022 · Contempt Application (Civil) No. 1380 of 2022 · **Contempt dismissed as not pressed; liberty if 6.5 representation not decided in time.**

HEADNOTE

A civil contempt alleging non-compliance with a writ-court direction to decide a Clause 6.5 representation under the U.P. Electricity Supply Code, 2005 was dismissed as not pressed. Liberty was reserved to file a fresh contempt if that representation was not decided within the period stipulated by the writ court. The bill and the alleged contempt were not examined on merits.

FACTUAL SUMMARY

Narendra Kumar brought a civil contempt against Harshit Tewari, Executive Engineer of Vidut Gramin/Nagariya Vitran Khand, Amethi, alleging failure to decide a representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within the time directed by the writ court. At the hearing, counsel did not press the petition, seeking only liberty to file a fresh contempt if that Clause 6.5 application remained undecided within the stipulated period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt of writ directing Clause 6.5 decision

HOLDING

The contempt petition was dismissed as not pressed, with liberty to file a fresh contempt if the petitioner's representation/application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 was not decided within the stipulated period provided by the writ court. The Court did not decide the bill or the alleged contempt on merits. ¶ 1

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill Contempt of a writ directing decision of a Clause 6.5 representation was dismissed as not pressed; the Court did not re-examine the bill or the alleged default on merits. ¶ 1

clause-6.5-pending-representation-to-be-decided Liberty to file a fresh contempt was tied to the petitioner's Clause 6.5 representation remaining undecided within the period stipulated by the writ court. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OPPOSITE PARTY HAD COMMITTED CONTEMPT OF THE WRIT DIRECTION

Petition dismissed as not pressed; merits of alleged non-compliance not examined. ¶ 1

NOT DECIDED — MERITS OF THE CLAUSE 6.5 REPRESENTATION/APPLICATION

Left to be decided within the period stipulated by the writ court. ¶ 1